



POLICE DEPARTMENT

April 26, 2024

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

Re: CCRB Case No. 202207643 (Incident Date: November 5, 2022) regarding Police Officer Dashawn Fogah, Tax No. 971936 (DADS No. 2023-29613) and Police Officer Christian Prate, Tax No. 971619 (DADS No. 2023-29614)

Dear Mr. Darche:

The Police Commissioner has reviewed the request for Charges and Specifications in connection with CCRB Case No. 202207643, pertaining to Police Officers Dashawn Fogah and Christian Prate. Having analyzed the facts and circumstances of this matter, the Police Commissioner has determined that to pursue Charges and Specifications against said Police Officers would be detrimental to the Police Department's disciplinary process.

After analyzing the facts and circumstances of the alleged misconduct, the Police Commissioner intends to issue no disciplinary action for the allegation that the officers' failure to obtain language interpretation services were based on actual or perceived national origin. The Police Commissioner has determined the evidence is clear, the officers' failure to obtain language interpretation service were not based on the complainant's actual or perceived national origin. The Police Commissioner believes CCRB did not show any indication that Police Officer Prate and Police Officer Fogah's failure to obtain language interpretation services amounted to discrimination based on national origin. In page five (5) of CCRB's Investigative Recommendation Report they stated "A Police officer's failure to obtain adequate language interpretation services for an LEP civilian with whom the officers is interacting in his law enforcement capacity and whom the officers knows has limited proficiency in English is national origin discrimination under the law and thus violates the NYPD's policy against biased policing." CCRB failed to provide any further reasoning to reaching such a conclusion. Such a conclusion carries the most severe consequence for an officer. Based on CCRB's reasoning, failure to request interpretation services does not contain any additional elements beyond what is already required to prove "pure" failure to request interpretation services, to amount to a failure based on actual or perceived national origin. This undercuts the goals of the Disciplinary System Penalty Guidelines. With this logic, CCRB would be revoking and replacing a penalty that CCRB has consistently applied since 2021.

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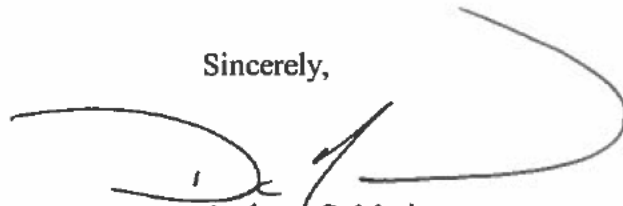
The matrix was developed in collaboration with various stakeholders including CCRB. The penalty in the Disciplinary Penalty System Guidelines for "Failure to provide language interpretation service", carries a mitigated penalty of training, a presumptive penalty of three (3) penalty days, and an aggravated penalty of five (5) days. Additionally in three prior cases where CCRB had substantiated allegations for failure to obtain language interpretation services, they sought penalties of a Schedule "B" Command Discipline (CCRB #202106439), Schedule "A" Command Discipline (CCRB#202101013), and thirteen (13) vacation days (CCRB#20200071), which also included a charge of excessive force. The Matrix endeavors to provide "reasonable notice of the standards by which conduct will be judged and the likely consequences of the failure to adhere to Department rules and policies."¹ This new recommended penalty is shockingly severe in light of CCRB's prior requests for the same misconduct.

Additionally, in prior CCRB cases alleging profiling, CCRB has analyzed direct and circumstantial evidence to determine if the preponderance of the evidence establishes that the civilian's race played any role in the officer's decision making. However, in this case, CCRB did not analyze if any motivating factors were present, or attempt to prove any bias existed. CCRB simply alleged by failing to provide language interpretation service, the officers are guilty of bias based policing in this case. The Police Commissioner strongly disagrees with CCRB's recommendation.

However, the Police Commissioner agrees with CCRB's allegations that the officers failed to obtain language interpretation services and improperly used their body worn cameras during this encounter, and will be disciplined appropriately.

As provided for within the 2012 Memorandum of Understanding between the CCRB and the New York City Police Department, the Police Commissioner, in the interest of justice and to retain jurisdiction over this matter, intends to impose no disciplinary action against Police Officers Fogah and Prate for the allegations that their failure to obtain language interpretation services were based on actual or perceived national origin. However, the Police Commissioner intends to direct the issuance of a Schedule "A" command discipline against Police Officers Fogah and Prate for failing to obtain language interpretation services without sufficient legal authority as well as for the improper use of their body worn cameras.

Sincerely,



Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
100 CHURCH STREET 10th FLOOR
NEW YORK, NEW YORK 10007 ♦ TELEPHONE (212) 912-7235
www.nyc.gov/ccrb



ARVA RICE
INTERIM CHAIR

May 2, 2024

The Honorable Edward Caban
Police Commissioner
New York City Police
Department One Police Plaza
New York, New York 10038

Re: CCRB Case No. 202207643
Police Officer Dashawn Fogah, Tax No. 971936
Police Officer Christian Prate, Tax No. 971619

I am writing in response to the letter from Deputy Chief Anthony S. Marino, dated April 26, 2024 (hereinafter referred to as the “letter”) informing the Civilian Complaint Review Board (CCRB) of the Police Commissioner’s intent to impose no disciplinary action against Police Officer Fogah and Police Officer Prate for the substantiated allegations that the officers engaged in biased policing on the basis of national origin.

Pages 5-6 of CCRB’s Investigative Recommendation Report in this case provides of the legal reasoning in support of its conclusion that “[a] Police officer’s failure to obtain language interpretation services for an LEP civilian with whom the officer is interacting in his law enforcement capacity and whom the officer knows has limited proficiency in English amounts to national origin discrimination under the law and thus violates NYPD’s policy against biased policing.”

- i. Paragraph 6 of Administrative Guide Procedure 304-17: Departmental Policy Prohibiting Racial Profiling and Bias-Based Policing states that “the Department complies with Federal civil rights laws and is committed to providing its programs and services without discrimination in accordance with *Title VI of the Civil Rights Act of 1964*, which prohibits discrimination based on race, color, and national origin (*including language*)” (emphasis added).
- ii. The United States Department of Justice, which enforces compliance with Title VI and its regulations by state and local law enforcement agencies that receive federal funding—the NYPD being such an agency—has clarified in its *Guidance Regarding Title VI Prohibition Against National Origin Discrimination Affecting Limited English Proficient Persons* (“*DOJ LEP Guidance*”) that Title VI and its implementing regulations require those law enforcement agencies to take “reasonable steps” to ensure that limited English proficient (LEP) persons have “meaningful access to” and can “effectively participate in or benefit from” the agencies’ programs and activities, including street stops and field investigations, police responses to requests for assistance, and custodial interrogations, and that failure to take such reasonable steps during these kinds of police-civilian

- interactions violates Title VI's prohibition against national origin discrimination. *See DOJ LEP Guidance*, 67 FR 41455, 41457, 41459, Appendix A (June 18, 2002).¹
- iii. Federal courts in New York State and around the country have also repeatedly held that law enforcement and other government officials' failures to provide language assistance to LEP persons attempting to access governmental services constitutes national origin discrimination under Title VI. *See, e.g., New York v. Utica City School Dist.*, 177 F.Supp.3d 739, 752 (N.D.N.Y. 2016); *U.S. v. Maricopa Cty*, 915 F.Supp.2d, 1073, 1079-81 (D.Ariz. 2012); *Jones v. Gusman*, 296 F.R.D. 416, 454 (E.D. La. 2013); *Methelus v. School Bd.*, 243 F.Supp.3d 1266, 1277-78 (M.D. Fla. 2017).
 - iv. The New York City Human Rights Law (NYCHRL) prohibits an employee of a "provider of public accommodation" from "withhold[ing] from or deny[ing] to [a] person the full and equal enjoyment, on equal terms and conditions, of any of the . . . services" of that provider because of the person's actual or perceived national origin. *See* N.Y.C. Admin. Code § 8-107(4)(1)(a). As a provider of services to the public, the NYPD is a "provider of public accommodation" under the NYCHRL, *see* N.Y.C. Admin. Code § 8-102, and NYPD members of service, as NYPD employees, are subject to NYCHRL's anti-discrimination provisions when they are engaging in law enforcement activities. *See Harris v. City of New York*, 2018 U.S. Dist. LEXIS 71290, *17-18 (E.D.N.Y. 2018).
 - v. The New York State Appellate Division for the First Department has held that the failure to provide adequate language interpretation services to LEP persons attempting to access the services of a New York City government agency constitutes national origin discrimination under the NYCHRL. *See Boureima v. N.Y.C. Human Res. Admin.*, 128 A.D.3d 532 (1st Dep't 2015)

CCRB also notes that the New York City Commission on Human Rights (CCHR) specifies in its *Legal Enforcement Guidance on Discrimination on the Basis of Immigration Status and National Origin* ("CCHR Enforcement Guidance") that "failure to seek to provide language interpretation services may be discrimination based on actual or perceived national origin where it amounts to a denial of meaningful access to direct public services or emergency services." *CCHR Enforcement Guidance* § III.3.a, available at https://www.nyc.gov/site/cchr/law/immigration-status-and-national-origin-legal-enforcement-guidance.page#_ftnref108.

In addition, the NYPD's August 2022 Language Access Plan explicitly recognizes that Title VI's prohibition on national origin discrimination requires NYPD officers to provide language interpretation services to LEP civilians when performing law enforcement functions.²

Thus, under governing federal and City law and NYPD policy, a failure to take reasonable steps to provide language interpretation services to an LEP civilian during a police-civilian encounter

¹ A copy of the *DOJ LEP Guidance* is attached hereto as Appendix A.

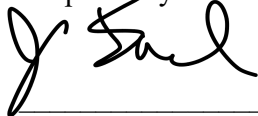
² Section III of the Plan states: "Consistent with Title VI of the Civil Rights Act of 1964, . . . it is the policy of the New York City Police Department to take reasonable steps to provide LEP and hearing-impaired persons with timely and meaningful access to the services and benefits that the Department provide to the degree practicable. When performing law-enforcement functions, members provide free language assistance to LEP individuals whom they encounter whenever necessary and whenever a LEP person requests language assistance services." *NYPD Language Access Plan* (Revised August 2022) at 2-3, https://www.nyc.gov/assets/nypd/downloads/pdf/public_information/nypd-language-access-plan-2022-August.pdf.

is national origin discrimination when that failure results in an LEP civilian being denied meaningful access to and/or prevented from effectively participating in or benefitting from police services. In this case, PO Fogah's and PO Prate's failure to provide the complainant, § 87(2)(b) with Spanish language interpretation services prevented him from understanding the officers' explanations of the steps they were taking to investigate his vehicle accident and from providing his account of the accident for inclusion in the accident report completed by the officers, thereby denying § 87(2)(b) meaningful access to and preventing him from effectively participating in the officers' accident investigation. Accordingly, PO Fogah's and PO Prate's failure to provide language interpretation services amounts to national origin discrimination under Title VI of the Civil Rights Act of 1964 and the New York City Human Rights Law and therefore violates the NYPD's prohibition on such national origin discrimination in the provision of police services set forth in Administrative Guide Procedure 304-17.

While the CCRB concedes that in prior complaints where it found a failure to provide language services it may have recommended less severe discipline, those complaints were investigated prior to the CCRB having jurisdiction over racial profiling and bias based policing. The Matrix's current penalties for biased policing have been in effect since February 2022.

Accordingly, for the reasons set forth above, the CCRB has found biased policing based on national origin in this case, and, accordingly, the charges and specifications recommended for the substantiated biased policing allegations, as indicated NYPD's Disciplinary Matrix, against PO Fogah and PO Prate are appropriate. In so far as the Department follows the Matrix, the charges and specifications should be served on PO Fogah and PO Prate. Should the Department change the disciplinary matrix to account for different types of bias based policing, the CCRB will adopt those changes pursuant to the February 2021 MOU between our Agencies.

Respectfully submitted,



Jonathan Darche
Executive Director
NYC Civilian Complaint Review Board



POLICE DEPARTMENT

May 3, 2024

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

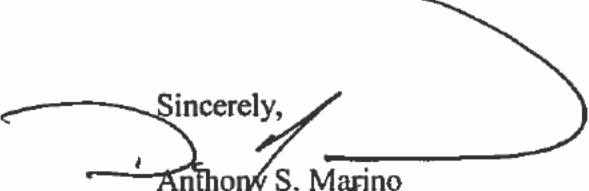
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Dear Mr. Darche:

The Police Commissioner has reviewed your letter, dated May 2, 2024, regarding the CCRB case involving Police Officers Fogah and Prate and nevertheless maintains that it would be detrimental to the Police Department's disciplinary process to allow the Civilian Complaint Review Board to continue its prosecution of said Police Officers, for the reasons expressed in my April 26, 2024 letter.

Therefore, the Police Commissioner affirms his decision to exercise Provision Two of the Memorandum of Understanding and now directs that no disciplinary action be imposed against Police Officer Fogah and Police Officer Prate for the allegations that their failure to obtain language interpretation services were based on actual or perceived national origin. Furthermore, the Police Commissioner directs that Police Officer Fogah and Police Officer Prate each be issued a Schedule "A" Command Discipline for failing to obtain language interpretation services without sufficient legal authority and for the improper use of their body worn cameras.

Sincerely,


Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office